

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 08/28/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
7	30-2026-01570049 Rancho Tierra Apartments LLC vs. De Olivas	The Court has read and considered the Plaintiff's Motion for Summary Judgment (ROA 47). The Court takes Judicial Notice of the Notice of Relief from Stay (Bankruptcy) (ROA 66), Complaint (ROA 2) and 7/22/2026 Minute Order (ROA 41). The Court GRANTS the Plaintiff's Motion for Summary Judgment. No issues of triable fact or law remain, a properly noticed Notice to Pay Rent in 3 Days or Quit in 30 Days in compliance with the CARES Act. On 7/22/2026 the Court ordered Plaintiff's Motion to Deem Request for Admissions, Set One, Admitted is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admission, propounded by Plaintiff and served on Defendant Donna Riccobono on July 1, 2026, be deemed admitted. Additionally, Defendant has not provided any evidence to support the claims in her Answer. Therefore, the Court finds judgment for the Plaintiff, Rancho Tierra Apartments, LLC. for possession of the property located at 13204 Myford Road #817, Tustin, CA 92782, County of Orange.

		In compliance with the Order Granting Motion for Relief from Stay Under 11 U.S.C. §362 in Case # 8:26-bk-12287-MH the Court will not issue a monetary judgment. The Court orders the lease is forfeited. The judgment applies to all unknown occupants under CCP §415.46. A writ of possession shall issue forthwith. Plaintiff's counsel is ordered to prepare a judgment consistent with the Court's order and file it with the Court by close of business today. Plaintiff is ordered to provide notice of entry of judgment. The Court vacates the pretrial conference and jury trial dates in light of the ruling on the motion for summary judgment.
8	30-2026-01564533 Cooper Fellowship, Inc. v. Bonner	The Court vacates the 8/14/2026 order which states "This matter is referred to Department C23 for review and reassignment based on Notice of Related Case, filing, under primary case number 30-2026-01545367, Cooper Fellowship, Inc., a California Non-profit religious corporation vs. Lengyel-Leahu." Under California Rules of Court, rule 3.300(h)(1)(B) provides "Where the cases listed in the notice include both unlimited and limited civil cases, the judge who has the earliest filed unlimited case must determine whether the cases should be ordered related and assigned to his or her department." Notice of Related Case indicates that 30-2026-01545367 is the unlimited case with the earliest filing. A review of the Court Docket in 30-2026-01545367 fails to show that there has been a Notice of Related Case filed in that matter. As Judge Fish is the judicial officer who will need to determine if the matters are related and if assignment to C11 is warranted in this matter. The Court continues this matter to September 23, 2026, at 8:30 AM for Review Hearing on the status of the Related Case Request that needs to be filed in Judge Fish's matter. The Motion for Summary Judgment remains trailing after the Review Hearing. The Court Clerk is to provide notice of the Court's ruling.
10	30-2025-01473837 Pahu vs. Crawford	The Court has read and considered the Defendant's Motion for Summary Judgment (ROA 44). The Court takes Judicial Notice of the Complaint (ROA 2). The Court GRANTS the Defendant's Motion for Summary Judgment. No issues of triable fact or law remain, as the Three-Day Notice to Pay Rent or Quit attached to the Complaint is fatally defective because it lacks the required statutory language under California Code of Civil Procedure section 1161(2). A Notice to Pay or Quit cannot be amended. The Court of Appeal held that when a plaintiff fails to strictly comply with the requirement under California Code of Civil Procedure section 1161(2), a plaintiff fails to state a cause of action for unlawful detainer. (<i>Eshagian v. Cepeda</i> (2025) 112 Cal.App. 5th 433, 457-459.)

		As possession of the property is no longer at issue, the Court finds the Defendant is the prevailing party in this matter. The Court orders the Court Clerk to seal the record as the Defendant is the prevailing party in this matter. The Defendant is ordered to provide notice of the Court's ruling.
11	30-2026-01567683 Tran v. Kim	The Court takes Judicial Notice of related matter 30-2026-01566561-CU-OR-CJC before Judge Lee Gabriel. On 8/25/2026 the Motion to Consolidate the matters was granted by Judge Gabriel. As reflected on the 8/25/2026 Minute Order (ROA 86 on 30-2026-01566561-CU-OR- CJC) "The Court orders the following cases consolidated for all purposes: 30-2026-01566561-CU-OR-CJC Kim vs. Tran and 30-2026-01567683-CL-UD-CJC Tran vs. Kim. The Court designates 30-2026-01566561-CU-OR-CJC Kim vs. Tran as the lead case and all further documents must be filed under the case number and caption of the lead case." All future hearings and orders on this matter will be heard in Department C32.
12	30-2026-01575211 Main Street Management, Inc vs. Rios	<u>Motion to Dismiss</u> The Court has read and considered the Defendant's Motion to Dismiss (ROA 19) A Motion to Dismiss is an improper responsive pleading after service of a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. The Defendant did not allege defective service of summons in the Motion to Dismiss and failed to file a Motion to Quash service within the statutory period. The Defendant filed this Motion on June 17, 2026 and chose to calendar it for August 28, 2026, more than 2 months after filing it and well outside the statutory time period for unlawful detainers. Furthermore, Defendant does not allege that the Complaint is not facially sufficient for an unlawful detainer complaint. Defendant's sole contention for the basis to dismiss the complaint is that Defendant has experienced economic hardship and would like to remain in the property. The Court DENIES the Motion to Dismiss. As such, the Court orders the Defendant to file an Answer within 3 calendar days. Plaintiff is ordered to provide notice of the Court's ruling. <u>Discovery Motions</u> The Court has read and considered the Plaintiff's Motion to Compel Production of Documents, Set One, and Request for Monetary Sanctions Against Javier Rios (ROA 39), Motion to Compel Responses to Interrogatories and Request for Monetary Sanctions Against Javier Rios (ROA 32), and Motion for Order Deeming Matters Admitted and Request for Monetary Sanctions Against Javier Rios (ROA 26).

		The Plaintiff's Motion to Compel Responses to Interrogatories is GRANTED. Defendant is hereby ordered to serve full and complete verified responses, without objection to the Request for Interrogatories, within 5 days of service of notice hereto. IT IS ORDERED that the Plaintiff's Motion for Order Deeming Matters Admitted be and hereby is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the Requests for Admissions, propounded by Plaintiff and served on Defendant on July 2, 2026, be deemed admitted. The Plaintiff's Motion to Compel Production of Documents is GRANTED. Defendant is hereby ordered to serve full and complete verified responses, without objection to Plaintiff's Request for Production of Documents, within 5 days of service of notice hereto. The Court orders Defendant, Javier Rios, to pay sanctions in the amount of \$555 to Plaintiff forthwith. This sum shall be made payable to "Law Offices of Sam Chandra, APC" within 5 business days and shall be delivered to 710 S. Myrtle Ave., Suite 600, Monrovia, CA 91016. Plaintiff is ordered to provide notice of the Court's ruling.
13	30-2026-01578705 VAOC Newport Plaza, LP vs. Tate	Defendant's Counsel filed a request to withdraw the Motion for Attorney's Fees (ROA 35 & 41). The Court vacates the hearing dates of August 28, 2026 and September 11, 2026, regarding the respective Motion for Attorney's Fees.
14	30-2026-01590619 Bays Apartments Newport LLC vs. Almataev	The Court has read and considered the Defendant, Eldiir Almataev's Motion to Strike Complaint (ROA 8) and the Complaint (ROA 2). The Defendant entitled the Motion a "Motion to Strike" but in the body of the document refers to it as a demurrer, and the proof of service for the Motion says on 8/21/2026 "Notice of Demurrer and Demurrer to Complaint" was served on the Plaintiff. The Court DENIES the Defendant's Motion to Strike the request for attorney's fees as an improper damages request. The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to serve notice of the Court's ruling.
15	30-2026-01582151 12575 9th Street, L P. vs. Flores	Motion to Dismiss is off calendar. Motion was ruled on 8/5/2026 by the Court. Court trial is set for 9/8/2026 at 8:30 AM.
16	30-2026-01587925 The Irvine Company LLC vs. Odooli	The Court has read and considered the Defendant's Demurrer (ROA 19), the Complaint (ROA 2), the Proofs of Service of Summons (ROA 8, 10, & 12) and Plaintiff's Opposition (ROA 30).

		The Court OVERRULES the Demurrer. The Defendants are ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
17	30-2026-01589113 South Spinnaker, LLC vs. Carter	The Court has read and considered the Defendant's Demurrer to Complaint (ROA 10) and the Complaint (ROA 2). The Court SUSTAINS the Demurrer with leave to amend on the grounds that the Plaintiff or its agent signs no verification. Plaintiff's counsel signs page 4 of the UD-100 form, but the signature line for Plaintiff is blank; and page 9 of ROA 2, entitled "Verification," lists Alicia Garrett as the property manager, but the signature line is also blank. Plaintiff is ordered to file an amended complaint within 5 business days. The Court Clerk is ordered to provide notice of the Court's ruling.
18	30-2026-01569741 Revxpros, Inc. vs. Hassas	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 26) and the Complaint (ROA 2). When a party files a demurrer, the Court looks at the facial sufficiency of the complaint and attachments only and cannot consider extrinsic evidence. The Court must assume that the statements contained within the Complaint are true in determining facial sufficiency. As such, the Court OVERRULES the Defendant's demurrer. The Defendant is ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
20	30-2026-01583181 Leon Shu Yau As Trustee Of The Leon Shu Yao & Kieu Hue Ly Revocable Trust vs. Young	The Court has read and considered the Defendant's Motion to Dismiss (ROA 10). The Court takes Judicial Notice of the Complaint (ROA 2) and Proof of Service of Summons (ROA 7). A Motion to Dismiss is an improper responsive pleading after service of a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. The Defendant did not allege defective service of summons in the Motion to Dismiss and failed to file a Motion to Quash service within the statutory time period. As the Defendant essentially argues the Motion to Dismiss as a Demurrer to the Complaint by arguing the Plaintiff failed to state facts sufficient to constitute a cause of action and on its face is defective, the Court deems the Defendant's Motion to Dismiss a Demurrer to the Complaint and will rule based on the filing.

	The Court in <i>Walters v. Meyers</i> (1990) 226 Cal.App.3d Supp. 15, 20 held “that service of the three-day notice by posting and mailing is effective on the date the notice is posted and mailed.” Here, the Complaint, the Notice to Pay Rent or Quit, and the Proof of Service for the Notice to Pay Rent or Quit show that service was effectuated by posting and mailing on June 25, 2026. The end of day on June 30, 2026, marks the end of the 3-day period. The Complaint in this matter was filed with the Court on July 1, 2026. The Complaint is facially sufficient to state a cause of action for an unlawful detainer. Therefore, the Court OVERRULES the Demurrer. Defendant is ordered to file an Answer within 5 calendar days. Plaintiff is ordered to provide notice of the Court’s ruling.
--	---